

Gurunam Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 31 July 2024 · 2024:AHC:123307-DB · Writ-C No. 24697 of 2024 · **Writ disposed; Clause 6.5 objection directed; recovery stayed four weeks.**

HEADNOTE

A writ challenging a recovery citation for electricity dues was disposed of on the licensee's statement that the consumer has a Clause 6.5 objection remedy, to be decided before recovery. Two weeks to object; two weeks for respondent no.2 to decide; recovery in abeyance four weeks, then to abide that decision. If no objection is filed in time, the order lapses.

FACTUAL SUMMARY

The petitioner, Gurunam Singh, filed a writ petition challenging a recovery citation dated 25 April 2023 issued by respondent no.4 for recovery of electricity dues from him. Counsel for U.P. Power Corporation Limited submitted that the petitioner had a remedy of filing an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that any objection so filed would be decided before recovering the amount under the citation. The Court did not examine the underlying dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to recovery citation

HOLDING

A consumer challenging a recovery citation for electricity dues has the remedy of filing an objection under Clause 6.5. The writ was disposed of with two weeks to file the objection, to be decided by respondent no.2 within the next two weeks; recovery remains in abeyance for four weeks and thereafter abides that decision. If no objection is filed within time, the order lapses and the licensee may proceed in accordance with law. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 25.04.2023 AND THE ELECTRICITY DUES CLAIMED

Left to decision on the petitioner's Clause 6.5 objection by respondent no.2. ¶ 3